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JUDGMENT SHEET

LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

C.R. No.981-D of 2024

Mst. Sapiyan (deceased) through legal heirs, etc.

Versus

Abdul Khaliq

J U D G M E N T

Date of Hearing:	03.02.2026
Petitioner by:	Mr. Muhammad Mudassar Hassan Sumra, Advocate.
Respondent by:	Mr. Muhammad Nadeem Farid, Advocate.

Anwaar Hussain, J. Predecessor of the petitioners, namely, Mst. Sapiyan daughter of Hussain Muhammad (hereinafter referred to as “**deceased plaintiff**”), who expired during the pendency of the suit instituted by her—laid challenge to the sale mutation No.9310 dated 05.03.2016 (hereinafter referred to as “**the impugned mutation**”), through which, statedly, the respondent, namely Abdul Khaliq, who happens to be the real brother of the deceased plaintiff, purchased the property belonging to the deceased plaintiff. It is pertinent to note that through the impugned mutation, another sister of the deceased plaintiff, namely Mst. Manzooran Bibi, also sold her share in the ancestral property to the respondent, yet said Mst. Manzooran Bibi never laid challenge to the transfer. It was the case of the deceased plaintiff that she was entrapped by the respondent under the pretext of procuring financial assistance for her, from the Benazir Income Support Programme, for which her thumb impressions were obtained, which were later misused by the respondent. It was further alleged that being an illiterate *pardanasheen* lady and suffering from physical disability, she was

defrauded, and this fact transpired only when she did not receive any amount, under the said Income Support Scheme and, upon inquiry, she came to know that her property had been sold. The suit was contested by the respondent, who categorically asserted that the sale transaction took place between the deceased plaintiff, the respondent, and Mst. Manzooran Bibi, on 24.06.2015, in the presence of the witnesses mentioned in the written statement, whereafter the impugned mutation was attested. After framing of issues and recording of evidence, the Trial Court decreed the suit *vide* judgment dated 09.12.2023, *inter alia*, on the premise that once the females are deprived of their share of inheritance in the property, a heavy burden lies upon the beneficiaries to prove the transaction, and that such burden was not discharged by the respondent, owing to the contradictions in the statements of the defence witnesses, including marginal witnesses of the impugned mutation and the revenue officials. However, upon appeal preferred by the respondent, these findings were reversed by the Appellate Court below through impugned judgment dated 30.08.2024.

2. Learned counsel for the petitioners contends that the findings of the Courts below are divergent and that a well-reasoned judgment of the Trial Court has been set aside by the Appellate Court below without proper appreciation of the factual matrix and evidentiary resume of the case. It is urged that this Court is required to examine as to which of the findings has been rendered in consonance with law and the material available on record. It is further contended that the deceased plaintiff was a *pardanasheen* lady who was deceived by the respondent, her real brother, and that she had no independent advice at the time of sanctioning the impugned mutation. Reliance is placed upon the case reported as Muhammad Tufail and 4 others v. Akbar Ali and 4 others (2004 SCMR 1370).

3. Conversely, learned counsel for the respondent has supported the impugned findings of the Appellate Court below and submits that the deceased plaintiff appeared as witness and admitted the sale in favour of the respondent.

4. Arguments heard. Record perused.

5. There is no cavil with the proposition that where a woman, being a weaker segment of the society—particularly an illiterate villager—is deprived of her property, a heavy onus lies upon the beneficiary to establish the genuineness and *bona fides* of the transaction. The Courts have, in numerous cases, leaned in favour of such women to guard against exploitation, which indeed appears to have persuaded the Trial Court to pass the judgment and decree dated 09.12.2023. However, in view of the divergent findings of the Courts below, following legal question requires determination:

Whether, in every case where an illiterate sister transfers property to her brother, the beneficiary must prove the transaction beyond doubt, even where the transferor herself appears before the Court and unequivocally admits its execution?

6. In present case, the contention raised by learned counsel for the petitioners regarding absence of independent advice is not borne out from the record. The husband of the deceased plaintiff, namely Anwar Ali—now arrayed as petitioner No.i—was present at the time of recording of the impugned mutation and affixed his thumb impression thereon. The mutation bears photographs of the vendors (the deceased plaintiff and Mst. Manzooran Bibi), as well as thumb impressions of the marginal witnesses. Furthermore, the marginal witnesses of the impugned mutation appeared before the Trial Court and, except for some minor discrepancies, attributable to lapse of time between the actual transaction and date of recording of evidence, remained consistent in their version regarding the sale of the property by the deceased plaintiff and her sister,

Mst. Manzooran Bibi to the respondent. This aspect has been aptly appreciated by the Appellate Court below. The operative part of the judgment dated 30.08.2024 reads as under:

“14. Another aspect of this case is that the disputed mutation was entered in Roznamcha Waqiyat vide Rapat No.712 on 24.06.2015 by Patwari Halqa and same was produced before the Tehsildar on the same day along with the parties and Tehsildar ordered to place the same before him after depositing of government dues and report of Girdawar and thereafter the disputed mutation was sanctioned by Tehsildar on 05.03.2016. The appellant/defendant while recording his statement as DW-1 specifically stated that the respondent/plaintiff and his other sister themselves agreed to sell their property to him for a consideration of Rs.3,00,000/- and after receiving sale consideration handed over the possession of the disputed property to him in the presence of witnesses namely Riaz Hussain and Jan Muhammad. Riaz Hussain, one of the marginal witnesses of the disputed mutation and Jan Muhammad who are also witnesses of offer and acceptance regarding sale and purchase of the disputed property while recording their statements as DW-2 and DW-3 also supported the version of the appellant/defendant. Nasir Masood Patwari Halqa while recording his statement as DW-4 stated that he has brought register of mutations of Mouza Jhalarin in which disputed mutation No.9310 dated 05.03.2016 is available according to which respondent/plaintiff and Mst: Manzooran sold their property to Abdul Khaliq (appellant/defendant) and he got entered mutation on 24.06.2015 and vendors admitted the sale of land to the appellant/defendant as well as receiving of sale consideration and delivery of possession and got recorded their statements in this regard before Revenue Officer which was sanctioned on 05.03.2016. Muhammad Shafi, the Ex-Revenue Officer while recording his statement as DW-5 stated that as per mutation No.3910 dated 05.03.2016, the respondent/plaintiff and Mst: Manzooran sold their property to the appellant/defendant. Although there is contradiction in the statement of DWs regarding payment of sale consideration which may occur due to elapse of time but it was primary duty of the respondent/plaintiff to prove the alleged fraud committed by the appellant/defendant in collusion of revenue officials while sanctioning the disputed mutation but the respondent/plaintiff failed to produce any independent evidence to prove her claim.”

While learned counsel for the petitioners could not point out any infirmity in the analysis undertaken by the Appellate Court below, particularly in paragraph No.14 of the judgment reproduced hereinabove, the most striking feature of the case is the admission made by the deceased plaintiff when she appeared as PW-1. During cross-examination, she stated as under:

”یہ درست ہے کہ میں نے اور میری بہن مسماۃ منظور اں نے عبدالحق مدعا علیہ کو تین لاکھ روپے میں اپنی اپنی اراضی فروخت کی ہے۔“

Suffice it to observe that admitted facts need not be proved. The genuineness of the impugned mutation further draws strength from the fact that Mst. Manzooran Bibi, who was also a co-vendor, neither challenged the impugned mutation nor was produced or got summoned as a witness by the deceased plaintiff in support of her case, despite the absence of any allegation that relations between the deceased plaintiff and Mst. Manzooran Bibi were strained.

7. The matter can also be examined from another perspective. The deceased plaintiff was a married woman and her marriage remained subsisting during her life. Her husband, namely, Anwar Ali (petitioner No.i) was statedly present during the sale proceedings; however, he was not produced as a witness, hence, the best evidence was withheld. Moreover, the record reflects animosity between the respondent and another real brother of the deceased plaintiff and the respondent, namely Shah Sikandar, with whom the deceased plaintiff was admittedly residing at the time of institution of the suit and the deceased plaintiff (PW-1) admitted that the suit was instituted at the behest of the said Shah Sikandar. The deceased plaintiff (PW-1) stated as under:

”میں اس وقت اپنے بھائی شاہ سکندر کے پاس رہ رہی ہوں یہ درست ہے کہ میرے بھائی شاہ سکندر اور عبدالحق مدعا علیہ کی آپس میں لڑائی ہے بول چال بھی نہ ہے یہ درست ہے کہ دعویٰ اہذا مجھ سے میرے بھائی شاہ سکندر نے

مدعا علیہ کے خلاف کرایا ہوا ہے۔ یہ درست ہے کہ میری بہن کا نام منظوراں ہے یہ درست ہے کہ میری بہن مسماۃ منظوراں نے بھی میرے ساتھ عبدالحق کو اراضی دی تھی۔“

(Emphasis supplied)

The above-quoted portion of the statement of the deceased plaintiff clearly demonstrates that not once but twice she unequivocally acknowledged having sold the property to the respondent. At this juncture, it is imperative to state that where an illiterate rural woman enters into a sale transaction in favour of a close male relative, such as a brother, the transaction is ordinarily examined with caution and a heavier burden lies upon the beneficiary to establish that it was voluntary and informed. However, this principle does not create an irrebuttable presumption of fraud. The burden stands discharged where it is shown that the woman had the benefit of independent advice or meaningful support and fully understood the nature of the transaction. In the present case, the evidence demonstrates that the deceased plaintiff was accompanied by her husband before the revenue official at the time of recording of sale transaction, appeared before the Court, with legal advise and unequivocally admitted that she, along with her sister (co-vendor), had sold the suit property to the respondent. Having received legal assistance, undergone examination-in-chief and cross-examination, and made a conscious admission before the Court, it cannot now be contended that she was so illiterate or incapable as to deny the sale transaction when she was also accompanied by her husband. In these circumstances, the sale cannot be set aside merely on the ground of her gender or alleged vulnerability. In this backdrop, the legal question is answered in the terms that there is no invariable rule requiring a beneficiary to prove a transaction beyond doubt merely because the vendor is an illiterate or physically disabled sister. Where the vendor herself appears before the Court, with full legal guidance, and unequivocally admits execution of the sale deed and receipt of

consideration, the presumption of validity stands reinforced. In the absence of cogent proof of fraud or coercion, no exceptional burden can be cast upon the beneficiary. The Appellate Court below has rightly appreciated the controversy by correctly identifying the core issue and, consequently, reversing the findings of the Trial Court.

8. In view of the foregoing discussion, this petition is devoid of merit and is accordingly **dismissed**. No order as to costs.

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting

Judge

Maqsood